

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

ASHLEIGH FUCHS, Respondent

Agency Case No. 2-535128066

OAH No. 2025060388

PROPOSED DECISION

Sean Gavin, Administrative Law Judge, Office of Administrative Hearings (OAH), State of California, heard this matter by videoconference on August 6, 2025, from Sacramento, California.

Jeff Stone, Deputy Attorney General, represented Mary Vixie Sandy, Ed.D., (complainant) Executive Director of the California Commission on Teacher Credentialing (Commission).

Respondent Ashleigh Fuchs appeared without an attorney.

Evidence was received, the record closed, and the parties submitted the matter for decision on August 6, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondent holds or held the following credentials and certificates from the Commission (collectively, “respondent’s credentials”):

On September 25, 2014, the Commission issued respondent a Certificate of Clearance, which expired on October 1, 2019, and has not been renewed.

On September 8, 2017, the Commission issued respondent an Emergency 30-Day Substitute Teaching Permit, which expired on October 1, 2018, and has not been renewed.

On November 13, 2018, the Commission issued respondent an Emergency 30-Day Substitute Teaching Permit, which expired on October 1, 2019, and has not been renewed.

On November 13, 2018, the Commission issued respondent a Preliminary Five-Year Multiple Subject Teaching Credential, which expired on December 1, 2023, and has not been renewed.

On June 27, 2024, the Commission issued respondent a Clear Multiple Subject Teaching Credential, which will expire on July 1, 2029, unless renewed.

2. During its meeting between August 14 and 16, 2024, the Commission’s Committee of Credentials (Committee) determined probable cause existed to recommend that the Commission discipline respondent’s credentials based on her August 2023 conviction for driving with a blood alcohol content (BAC) of 0.08 percent or greater (driving under the influence of alcohol, or DUI) and the underlying conduct.

Respondent timely requested the Committee to reconsider its recommendation. In the alternative, she requested an administrative hearing to challenge the Committee's recommendation. The Committee reconsidered its recommendation during its meeting between October 9 and 11, 2024. Thereafter, the Committee notified respondent it would sustain its previous recommendation and forward respondent's request for a hearing to the Attorney General's Office for further action.

3. On April 8, 2025, complainant, acting solely in her official capacity, signed an Accusation seeking to discipline respondent's credentials for unprofessional conduct, evident unfitness for service, and addiction to the use of intoxicating beverages to excess based on her August 2023 DUI conviction and the underlying conduct. The Accusation further alleged, as a matter in aggravation, that the Commission suspended respondent's credentials for 270 days between October 1, 2023 and June 26, 2024, based on her prior criminal convictions, as detailed in Factual Findings 6 and 7, below. Respondent filed a Notice of Defense to the Accusation. This hearing followed.

CAUSE FOR DISCIPLINE: AUGUST 2023 DUI CONVICTION

4. On August 23, 2023, in the Superior Court of California, County of Tehama, case number 23CR001692, respondent was convicted, on her guilty plea, of violating Vehicle Code section 23152, subdivision (b) (DUI), a misdemeanor. She also admitted a sentencing enhancement under Vehicle Code section 23578 (having a BAC exceeding 0.15 percent). The court suspended imposition of sentence and placed respondent on informal probation for three years on conditions that required her, among other things, to serve two days in jail, complete a three-month DUI program, complete 40 hours of Work Program, and pay fines and fees.

5. The circumstances underlying the conviction occurred on June 30, 2023. Police officers received a report of erratic driving and observed respondent weaving while driving. The officers stopped respondent, who smelled of alcohol, slurred her speech, and had bloodshot and watery eyes. Respondent performed poorly on field sobriety tests. The officers measured her BAC as 0.21 percent via breath and blood sample.

Matters in Aggravation: 2023-2024 Suspension for Prior Convictions

6. In 2022, respondent applied for her Clear Multiple Subject Teaching Credential. In processing the application, the Commission investigated respondent's criminal history. On September 1, 2023, the Commission sent respondent a letter notifying her it would suspend her credentials for 270 days. The Commissioner's letter indicated that following the suspension, respondent's application for a Clear Multiple Subject Teaching Credential would be granted.

7. Respondent served the suspension between October 1, 2023, and June 26, 2024. The Commission based the suspension on respondent's: (1) August 2022 conviction for battery of a spouse or cohabitant; (2) June 2013 conviction for DUI (second offense) in Wisconsin; (3) her May 2008 conviction for DUI (first offense) in Wisconsin; and (4) her January 2007 conviction for obtaining prescription drugs through fraud in Wisconsin.

Respondent's Evidence

8. Respondent testified at hearing about her past alcohol use and subsequent rehabilitation and recovery. She also produced documentary evidence to show her progress in recovery. She explained she was born and raised in Wisconsin,

where it was normal and accepted to drink alcohol excessively. She did not learn about all the potential risks of alcohol use as a young person.

9. When respondent was 17 years old, she got into an abusive relationship and her life changed. She stayed in that relationship for approximately nine years, during which time she and her partner had two children together. She used alcohol to cope with her stress.

10. In July 2012, respondent was arrested for DUI. It was her second arrest and she felt helpless. Approximately two weeks later, she ended her relationship and moved to California with her two children. She started a small farm and began attending classes at California State University, Chico. Over the next few years, she did not completely stop drinking alcohol, but she did not use it excessively.

11. In 2016, respondent began a new relationship with a man who had two children of his own. They moved in together and lived with their four children as a blended family. Their relationship was healthy for approximately four years, after which it worsened. As her relationship deteriorated, respondent did not have any skills to cope with her feelings. The COVID-19 pandemic added even more stress to her life. In 2020 and 2021, she used alcohol more and more. She developed "a serious alcohol problem" by mid-2021. She did not drink during the week, but on weekends she would binge and "didn't know when to stop."

12. In June 2021, respondent was arrested for battering her partner. She had been drinking heavily that day. She recognized that her alcohol use had become a major problem for her. Shortly thereafter, she completed a 10-day in-patient program for alcohol abuse and began attending Alcoholics Anonymous (AA) meetings. Through those efforts, she was able to achieve and maintain sobriety.

13. In May 2023, respondent received a letter from the Commission indicating it intended to suspend her credentials. She thought her "world was over" and she relapsed. Soon after she began drinking alcohol again, on June 30, 2023, she was arrested for DUI. The next day, she woke up and "knew [she] couldn't do this anymore." She resolved to regain and permanently maintain her sobriety.

14. In addition to completing her court-ordered probation terms, which included a three-month DUI program, respondent also sought individual psychotherapy. In February 2024, she began treating with Julie Hunter, an Associate Marriage and Family Therapist at New Day Family Counseling Center in Red Bluff, California. Through cognitive behavioral therapy (CBT), Ms. Hunter has helped respondent "completely change [her] life." She continues to treat with Ms. Hunter weekly.

15. Respondent has used CBT to help her set, track, and achieve personal goals. Through that process, she has gained coping skills she did not have before. One of the most important skills that has allowed her to remain sober for more than two years is nonjudgmental self-appraisal. For example, in the past, she was unable to differentiate her urge to drink alcohol from her underlying feelings. Now, through self-reflection and daily journaling, she can identify and address her feelings before they overwhelm her.

16. Over the past two years, respondent has "changed [her] entire life to basically start over." She ended her relationship with her partner, in large part because she believes he is also an alcoholic but lacks her commitment to sobriety. Additionally, she "cut out friends and family who don't support a sober lifestyle." Now, she has a small group of sober friends who support each other. She does not attend AA meetings because she finds it difficult and triggering to spend time around others who

are at different points in their own sobriety. She has not worked AA's 12-step program, but she considers Ms. Hunter to be like her sponsor.

17. Despite having her Clear Multiple Subject Teaching Credential since June 2024, respondent initially chose not to pursue a permanent teaching position while this matter was pending hearing. She teaches elementary school and feared that if she began a permanent position but had to leave midway through the school year as a result of this matter, her departure would be difficult for the students and for her. Instead, she elected to work as a substitute teacher for the past year. The day before this hearing, she accepted a position to work for the Tehama County Department of Education in Red Bluff. The job will focus on the social emotional components of education, about which respondent feels especially passionate.

LETTERS OF SUPPORT

18. Respondent submitted a letter of support from her eldest daughter, who is 19 years old. Respondent's daughter was present during the events leading to respondent's battery arrest in June 2021. She noted, "I saw what happened firsthand and have also witnessed the growth and improvements since." She is also aware of respondent's June 2023 DUI arrest and subsequent conviction. She observed:

My mom was going through a very difficult time in her life. She has come a very long way, and moved my sister and I into a new home with her, and [I] have seen that she has stopped drinking, which was a huge factor in what caused her previous actions that led to those charges. She has changed for the better, and even back then, I could never believe she was ever a danger to me, the family, and most

of all to a child in a school setting. In writing this, I hope to help her not lose her teaching credential, because she has done the hard work to be better, and I want her to be able to continue to support us and herself, most importantly.

19. Respondent also submitted a letter of support from Ms. Hunter. She noted one of respondent's primary goals in therapy has been "to develop a sustainable approach to managing her alcohol use." In Ms. Hunter's opinion, respondent "has consistently emphasized the importance of this goal and has taken significant steps toward achieving it." Together, they analyzed respondent's prior attempts to maintain sobriety and identified alternatives that were more consistent with respondent's needs and values. Specifically, they have focused on improving her "lifestyle, living environment, social circle, and personal priorities." Ms. Hunter believes respondent is successfully "applying the strategies and skills that support her continued progress."

20. Finally, respondent submitted a letter of support from Christina Agnew, a manager at PATH Plaza Navigation Center in Red Bluff, where respondent completed 80 hours of court-ordered community service following her August 2022 battery conviction. Ms. Agnew noted that respondent "consistently demonstrated professionalism, compassion, and a strong work ethic." Ms. Agnew praised respondent as punctual, dependable, and eager to help. In her opinion, what stood out most about respondent was her "respectful and empathetic attitude toward our clients and [her] willingness to contribute meaningfully to our mission."

Analysis

21. It is undisputed respondent was convicted of DUI in August 2023, following multiple other convictions since 2008, all of which stemmed from her alcohol abuse. The clear and convincing evidence established that respondent engaged in unprofessional conduct. The relevant question, then, is what level of discipline is necessary and appropriate to protect the public.

MORRISON FACTORS

22. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, the California Supreme Court concluded a teaching credential cannot be disciplined for unprofessional conduct "unless that conduct indicates that the [educator] is unfit to teach." (*Id.* at p. 229.) The Court outlined factors to consider when determining whether an educator's conduct demonstrates unfitness to teach (*ibid.*), and the Commission adopted those factors by enacting California Code of Regulations, title 5, section 80302. Those factors are considered below.

Likelihood of Adverse Effect on Students or Fellow Teachers

23. "A teacher [. . .] in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the children coming under [her] care and protection." (*Bd. of Education v. Swan* (1953), 41 Cal.2d 546, 552, quoting 66 Corpus Juris, p. 55, [overruled on other grounds by *Bekiaris v. Bd. of Ed.* (1972) 6 Cal.3d 575].) Respondent's disregard for the law reflects poorly on her individually, and on teachers generally. Moreover, the nature of respondent's criminal activity demonstrates a severe lack of sound judgment. Because

students are impressionable and may try to emulate their teachers, it is essential that an educator's behavior be beyond reproach. Respondent's August 2023 conviction and the underlying conduct demonstrated behavior inimical to the well-being of students, and portrayed both her and the teaching profession negatively.

Proximity of Remoteness in Time

24. Respondent's conviction occurred just two years ago, in August 2023. That is not remote in time, especially "given [respondent's] record of repeated convictions occurring at intervals of ten and five years." (*Broney v. California Com. on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 477.)

Type of Credentials Held

25. Respondent's Clear Multiple Subject Teaching Credential authorizes her to teach students of many ages in a variety of contexts. Therefore, it is even more imperative that she exemplify the type of behavior society wants emulated by students and possess sound judgment. Respondent's August 2023 DUI conviction and the underlying conduct raise concerns over whether she is an appropriate role model for her students.

Extenuating or Aggravating Circumstances

26. Neither the Education Code nor the regulations adopted by the Commission specify what constitutes "extenuating circumstances." However, the California Code of Regulations defines "mitigating factor" as "an event or circumstance which demonstrates that the public, schoolchildren and the profession would be adequately protected by a more lenient degree of adverse action or no adverse action whatsoever." (Cal. Code Regs., tit. 5, § 80300, subd. (m).) The Commission's regulations

also define “aggravating factor” as “an event or circumstance which demonstrates that a greater degree of adverse action for an act of professional misconduct is needed to adequately protect the public, schoolchildren or the profession.” (*Id.* at § 80300, subd. (b).)

27. Respondent’s crimes stem from her past history of alcohol use. To her credit, she has ended the relationships in her life with people who did not support her goal of sustained sobriety. In aggravation, however, she has a history of criminal conduct attributable to her alcohol use. Moreover, her August 2023 conviction occurred when she relapsed after receiving the news that the Commission intended to discipline her credentials. Faced with a suspension, when respondent had strong reason to be on her best behavior possible, she committed another crime. This suggests the Commission must take additional steps to ensure public protection.

Praiseworthiness or Blameworthiness of the Motives Resulting in the Misconduct

28. Respondent bears the sole blame for her criminal conduct. Her choices led her to drive after using alcohol and the resulting DUI conviction.

Likelihood of Recurrence

29. Respondent has already been convicted of DUI multiple times. The repeated nature of her criminal conduct demonstrates an ongoing pattern of misconduct involving the irresponsible use of alcohol. Furthermore, respondent’s August 2023 conviction occurred when she relapsed following a period of sustained sobriety for more than a year. Although she credibly testified that she has now been sober for approximately two years, her recovery is still fairly new and potentially

fragile. Moreover, although she treats with Ms. Hunter weekly, she does not attend any addiction support groups such as AA.

Possible Chilling Effect on Constitutional Rights of Others

30. Neither party presented evidence about the possibility of a chilling effect on any person's constitutional rights. Given the nature of respondent's criminal conduct, such an effect is unlikely.

Publicity or Notoriety of Misconduct

31. There was no evidence that respondent's August 2023 conviction was noteworthy or the subject of public interest.

APPROPRIATE DISCIPLINE BASED ON THE *MORRISON* FACTORS

32. Complainant proved there is cause to discipline respondent's credentials for unprofessional conduct. Based thereon, the Commission "shall privately admonish, publicly reprove, revoke or suspend" the credentials in question. (Ed. Code, § 44421.) When determining what level of discipline to impose, the Commission should consider the aggravating and mitigating factors previously identified. (Cal. Code Regs., tit. 5, § 80300, subds. (b), (m).)

33. As discussed above, the aggravating factors here greatly outweigh the mitigating factors. Consequently, significant discipline of respondent's credentials is appropriate. However, the purpose of an administrative disciplinary action is not to punish the licensee for her misconduct, but rather to ensure she does not exercise her license privileges in derogation of the public interest. (*Camacho v. Youde* (1979) 95 Cal. App. 3d 161, 164.) Based on respondent's rehabilitation—including her earnest acknowledgment of wrongdoing and genuine accountability, her two years of sobriety,

her ongoing work with a therapist, and her new and different social relationships designed to support her recovery—completely revoking her credentials would be unduly punitive.

34. Instead, the appropriate discipline is to suspend respondent's credentials for one year, but to stay the suspension and place her credentials on probation, during which time respondent will be subject to appropriate terms and conditions. The Commission may issue a stayed suspension "for a specified period of time only if the stay and performance of specified rehabilitative or probationary duties by the credential holder during the period of the stay is deemed consistent with the purposes of professional discipline." (Cal. Code Regs., tit. 5, § 80300, subd. (t)(1).)

35. Here, the probationary terms and conditions will, among other things, forbid respondent from using alcohol or any other unprescribed controlled substances. They will also require respondent to submit to biological fluid testing and attend an addiction support group meeting, such as AA, at least twice per month. Probation will allow the Commission to monitor respondent's conduct and act quickly to discipline her credentials in the event she violates its terms. Given respondent's relatively recent sobriety, coupled with her past relapses following similar stretches of sobriety, the probationary period should be five years.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. Complainant bears the burden of proving grounds to discipline respondent's credentials, and must do so by clear and convincing evidence to a reasonable certainty. (*Daniels v. Dept. of Motor Vehicles* (1983) 33 Cal.3d 532, 536

["When an administrative agency initiates an action to suspend or revoke a license, the burden of proving the facts necessary to support the action rests with the agency making the allegation"]; *Gardener v. Com. on Professional Competence* (1985) 164 Cal.App.3d 1036, 1039-1040 [recognizing that the clear and convincing evidence standard applies to proceedings to discipline a teacher's credential, whereas the lesser preponderance of the evidence standard applies to proceedings to dismiss a teacher from particular employment].) "The courts have defined clear and convincing evidence as evidence which is so clear as to leave no substantial doubt and as sufficiently strong to command the unhesitating assent of every reasonable mind. [Citations.] It has been said that a preponderance calls for probability, while clear and convincing proof demands a *high probability* [citations]." (*In re Terry D.* (1978) 83 Cal.App.3d 890, 899; italics original.)

Causes for Discipline

2. The Commission may discipline a credential for unprofessional conduct. (Ed. Code, § 44421.) "Unprofessional conduct" includes "'that which violates the rules of ethical code of a profession or such conduct which is unbecoming a member of a profession in good standing.'" (*Bd. of Education v. Swan, supra*, 41 Cal.2d at p. 553.) Respondent's August 2023 DUI conviction, and the conduct underlying it, constitute unprofessional conduct. Therefore, complainant established by clear and convincing evidence that cause exists to discipline respondent's credentials for unprofessional conduct pursuant to Education Code section 44421.

3. The Commission may discipline a credential for evident unfitness for service. (Ed. Code, § 44421.) "'Evident unfitness for service' means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified School Dist. v. Com.*

on Professional Competence (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

4. Complainant did not prove respondent is evidently unfit for service as a teacher. Specifically, complainant did not prove that respondent is unsuitable for teaching based on a temperamental defect, inadequacy, or irremediable fixed character trait. Therefore, complainant did not establish by clear and convincing evidence that cause exists to discipline respondent's credentials for evident unfitness for service pursuant to Education Code section 44421.

5. The Commission may discipline a credential "for any cause that would have warranted the denial of an application for a credential or the renewal thereof." (Ed. Code, § 44421.) An application for a credential may be denied if the applicant "[i]s addicted to the use of intoxicating beverages to excess." (Ed. Code, § 44345, subd. (c).) It is undisputed that respondent is an alcoholic. Therefore, complainant established by clear and convincing evidence that cause exists to discipline respondent's credentials based on her addiction to using alcohol to excess pursuant to Education Code section 44421, as that statute relates to Education Code section 44345, subdivision (c).

Appropriate Discipline Based on the *Morrison* Factors

6. As explained above, cause exists to discipline respondent's credentials for unprofessional conduct and her addiction to using alcohol to excess. However, as discussed in Factual Findings 32 through 35, respondent's actions were not so extreme or harmful as to indicate she is unfit to teach. As such, outright revocation of her credentials is not the only manner of protecting the public. Rather, consistent with

respondent's evidence of rehabilitation, her credentials should be suspended, but that suspension should be stayed for five years, subject to appropriate probationary terms and conditions. During that time, the Commission can monitor respondent's conduct to ensure she maintains her sobriety.

ORDER

All credentials issued to respondent Ashleigh Fuchs are hereby suspended for one year. However, the suspension is stayed, and respondent's credentials are placed on probation for five years under the following terms and conditions. Any new credential or authorization issued to respondent during the period of probation shall also be suspended, the suspension stayed, and will be subject to the same terms and conditions of probation during the period of probation.

SEVERABILITY CLAUSE: Each condition of probation contained herein is a separate and distinct condition. If any condition of probation is declared unenforceable in whole, in part, or to any extent, the remaining conditions of probation, and each of them, shall not be affected. Each condition of probation shall separately be valid and enforceable to the fullest extent permitted by law.

1. Respondent shall obey all federal, state, and local laws and regulations, including, but not limited to, the statutes and regulations of the Commission. A full and detailed account of any and all arrests or citations for any violation of law (except minor traffic offenses) shall be reported by respondent to the Commission, in writing within 30 days of the arrest or citation.

2. Respondent shall fully comply with the terms and conditions of this order and cooperate with representatives of the Commission and her assigned probation

compliance monitor (monitor) in the monitoring and investigation of her compliance. Respondent shall participate in a telephone or in-person review of the probation terms with respondent's monitor within 14 calendar days of the mailing of the monitor's written request.

3. Respondent shall notify the monitor of her current mailing address, email address, and telephone number where voicemail or text message may be sent. Respondent shall notify the monitor in writing within 72 hours of any change of mailing address, email address, or telephone number.

4. Respondent shall report to the Commission quarterly on a schedule designated by the Commission or the monitor. Reports shall be made either in person or in writing, as directed. Among other requirements as determined by the Commission, respondent shall state in each report under penalty of perjury whether she has complied with all the terms and conditions of probation.

5. Respondent shall submit to the monitor a full and detailed written account of any and all arrests or citations for any violation of law in California or any other state, except minor traffic offenses, within three business days of the arrest or citation.

6. Respondent shall notify her monitor in writing of the name and address of her current employer within 14 calendar days after the written request to participate in a review of her probation terms is mailed by respondent's monitor. If respondent is currently employed in a position that requires her to have a California teaching credential, respondent shall provide a copy of the Decision and Order to her employer and immediate supervisor within five days of its effective date. If respondent changes

employment during the probationary period, she must provide a copy of the Decision and Order to each new employer.

Respondent shall notify her monitor in writing within three business days of the cessation of any employment that requires a California teaching credential or change of employment that requires her to have a California teaching credential. The notification shall contain a detailed description of the circumstances surrounding the termination and/or change of employment.

7. Respondent shall completely abstain from the possession of, consumption of, or use of alcohol and/or controlled substances, except when ordered by a health care professional legally authorized to do so as part of documented medical treatment. Respondent shall provide documentation of prescriptions, recommendations, orders, and treatment plans of health care professionals for the use of these prohibited substances within five days following the request of the monitor.

8. Respondent shall submit to bodily fluid testing for the presence of alcohol and/or controlled substances at the request of respondent's employer, immediate supervisor, or law enforcement. In addition, respondent shall, at her expense, fully cooperate with the Commission or any of its representatives, including the monitor, during the period of probation and shall, when requested, submit to such tests and samples as the Commission or the monitor may require for the detection of alcohol and/or controlled substances. Failure or refusal to submit to testing, a positive test, or two diluted test results during the period of probation shall constitute a violation of probation.

9. Respondent shall execute and submit to the monitor any release of information forms that the Commission may require to monitor her compliance with

the terms of probation, including but not limited to the release of information forms concerning the results of bodily fluid testing performed by third parties.

10. Respondent shall maintain an active, current credential with the Commission, including during any period of suspension.

11. Respondent shall attend addiction support group meeting, such as AA, at least twice per month. Respondent shall provide proof of attendance with each quarterly report that respondent submits during the period of probation.

12. Failure to comply with the terms of probation shall constitute a violation of probation. If respondent violates any term or condition of her probation, the Commission may refer the matter to the Attorney General's Office to file a petition to revoke probation, and after giving respondent notice and an opportunity to be heard, may set aside the stay order and impose the stayed discipline. If during the period of probation a petition to revoke probation has been filed against respondent's credentials, the probationary period shall automatically be extended and shall not expire until final action is taken on the petition by the Commission.

13. Upon successful completion of probation, respondent's credential and certificates/authorizations shall be fully restored.

DATE: September 4, 2025

A handwritten signature in black ink, appearing to read "Sean", followed by a horizontal line with a small upward tick at the end.

SEAN GAVIN

Administrative Law Judge

Office of Administrative Hearings